No. 01-1196

Supreme Court, U.S.
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In The

Supreme Court of the United States

SIMON BALDERAS, GILBERTO Z. TORRES and TEXAS LEAGUE OF UNITED LATIN AMERICAN CITIZENS,

Appellants,

v.

STATE OF TEXAS, ET AL.,

Appellees.

On Appeal From The United States District Court For The Eastern District Of Texas

REPLY TO TEXAS MOTION TO AFFIRM

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ARGUMENT

Despite its contrary aim, the State of Texas' Motion to Affirm ("Texas Motion") further demonstrates why this case requires plenary review. Faced with a brief and partially inscrutable four-sentence disposition of plaintiffs' claims, the State must both defend the District Court's failure to make findings to support and explain its decision, and explain why the court's evident failure to follow established standards under the first section 2 precondition does not warrant reversal.

The State responds to this conundrum by proffering an unsupportable, revisionist reading of the District Court decision. Even though the court used terminology that, over the years, has become synonymous with the first precondition from *Thornburg v. Gingles*, 478 U.S. 30 (1986), the State argues that the court's conclusion actually rested on the "totality of the circumstances" and on constitutional concerns, emanating from *Shaw v. Reno*, 509 U.S. 630 (1993), purportedly raised by the configuration of plaintiffs' proposed Latino-majority districts. While the State's scanty defense of the court's express *Gingles* prong one conclusion implicitly concedes trial court error, the State's alternative, revisionist reading founders on two immovable barriers – established Voting Rights Act precedent and the District Court's own actions.

The purported constitutional concerns simply have no application at the liability stage of a section 2 case. Yet, because the court's decision cannot possibly be read to have reached remedy considerations, the State untenably asserts that these concerns are relevant to compactness analysis under *Gingles* prong one. Equally problematic, the wording of the District Court's decision, as well as the court's own redistricting plan belie any consideration of the State's argued constitutional concerns.

Similarly flawed, the State's assertion that the appealed decision rested on an analysis of "totality" cannot be reconciled with the court's failure to discuss any *Gingles* precondition besides the first, and its omission of discussion of any Senate factor. Moreover, the State's assertion that the court's reference to "effective" districts is anything other than a mis-application of *Gingles* one misreads the language of the District Court's own ruling.[1]

The State's Motion raises more questions about the District Court decision than it answers; rather than supporting summary affirmance, it reiterates the plaintiffs' call for this Court's review.

I. THE DISTRICT COURT ERRED IN REJECTING PLAINTIFFS' PROPOSED DISTRICTS THAT WERE EQUALLY OR MORE COMPACT THAN COURT-ADOPTED DISTRICTS

The 2000 Census revealed that, since 1990, the six Latino-majority congressional districts in South Texas had grown by over 700,000 residents. Measured against the new ideal population for Texas congressional districts, the six districts were still overpopulated by 189,043 persons. In addition, counties neighboring the Latino-majority districts experienced strong population growth and

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[1] At page 3 of its Motion, the State disingenuously highlights – and fails to note that this emphasis was not in the original – the words "compact" and "effective" in one sentence from the District Court decision. While this surreptitious adding of emphasis tellingly omits "numerous" from its highlights, the State also fails to reckon with the succeeding sentence in the Senate decision, which begins "We *further* find that, under the totality of the circumstances. . . . " J.S. App. at 26 (emphasis added). The State never explains how its asserted "effectiveness" concern, which it takes from the preceding sentence, should be read as included in a subsequent "further" finding as to totality.

share many social, historical, and economic characteristics with their southerly neighbors.

Geography, combined with rapid Latino population growth, presented only two redistricting options for South Texas in 2001: contract the existing Latino districts toward the U.S.-Mexico border, reducing their size and increasing their already substantial Latino voter percentages; or create one new Latino-majority district by combining excess population from the existing districts with similar, neighboring counties. The District Court chose the first option, subtracting a net nine counties from the districts' territory and exacerbating the "packing" of Latino voters. In contrast, the plaintiffs' plan created an additional Latino majority district in the region, expanding the area of the now-seven districts.

The State urges this Court to affirm on the basis of compactness under the first *Gingles* precondition.[2] Yet, because the District Court failed to discuss any of plaintiffs' proposed districts, the State and Manley are unable to point to any particular district that the court found insufficiently compact. Furthermore, all of the court-drawn Latino-majority districts in South Texas were similar to or *less* compact than the same districts proposed by plaintiffs: District 15, linking San Patricio County to the U.S.-Mexico border; District 16 in El Paso; District 20 in San Antonio; District 23 in West Texas; District 27 along the Gulf Coast; and District 28, linking San Antonio to the border. Plaintiffs' proposed new congressional district, District 32, had compactness measures comparable to the court's Latino-majority districts.[3]

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[2] Appellants address the compactness arguments of both the State and Manley (Manley Motion) in this Reply.

[3] Compactness scores, produced by the Texas Legislative Council, for the trial court's plan 1151C, the plaintiffs' proposed plan 1123C, and the benchmark plan 1000C, are included in the Appendix (App.) at 16.

The State also does not dispute that the plaintiffs' proposed Latino-majority districts met the standard of compactness that the State set, and are more compact than ten congressional districts used in Texas throughout the 1990s. Nor does the State dispute that the plaintiffs' proposed districts are more compact than six remedial congressional districts created by the District Court in *Bush v. Vera*, 933 F.Supp. 1341 (S.D. Tex. 1996). Thus, the request that this Court summarily affirm, on compactness grounds, the rejection of proposed districts that are more compact than those the District Court itself drew – in this case and in *Vera* – simply defies logic.

Ignoring established compactness standards, the State argues that the districts' vertical shape alone justified a ruling that the Latino population is insufficiently compact to comprise the majority of seven districts in the region. Manley Motion at 18; Texas Motion at 4. This argument is unavailing in light of the traditional redistricting practices of the State, expressed since the 1980's, to create north-south Latino-majority districts in South Texas. Outside the urban counties of Bexar and El Paso, the Texas Legislature has traditionally created north-south Latino-majority districts in the region, ranging in length from over 150 miles to 550 miles.[4] The District

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[4] The *Vera* District Court found that the north-south configuration of congressional districts in South Texas was a traditional, non-race based redistricting practice:

> The location of District 28 in the northern portion of South Texas was determined in part by the historical north-south configuration of Congressional Districts 15 and 27. This was the result of attempts to remedy a . . . Section 5 objection which expressed concern that the original east-west configuration of Districts 15 and 27 resulted in packing of the Hispanic population. . . . [District 28's] progression south from Bexar County [to the Mexican border] is similar to the

Court followed that tradition in creating similarly long districts in its congressional plan. Aside from this misplaced critique of vertical districts, the State points to nothing in the record suggesting that the plaintiffs' proposed districts are non-compact.

II. THE DISTRICT COURT DID NOT RELY AND COULD NOT HAVE RELIED ON *SHAW* CONCERNS

The State ascribes to the District Court an entirely undiscussed analysis and conclusion that plaintiffs' proposed districts impermissibly subordinated compactness to racial considerations in contravention of *Shaw v. Reno*. The District Court undertook no such analysis and reached no such conclusion; thus, the State's imputation cannot form the basis for a summary affirmance.

The holdings of *Shaw*, *Hunt v. Cromartie*, 532 U.S. 234 (2001), *Bush v. Vera*, 517 U.S. 952 (1996), and *Miller v. Johnson*, 515 U.S. 900 (1995), do not require a higher compactness standard for majority minority districts than is employed in the remainder of the statewide plan. To the contrary, *Vera*, 517 U.S. at 977-978, instructs that where a district is drawn to remedy a section 2 violation, it may depart from traditional redistricting criteria, such as compactness, in a manner that non-remedial districts may not. If the uncommonly high standard of compactness urged by the State – more compact than districts in the rest of the state – operated to block section 2 plaintiffs at the *Gingles* precondition stage of the proceedings, then *Vera's* permission to depart from traditional redistricting criteria at the remedy phase would be a nullity. Similarly,

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configuration of the other Congressional districts in South Texas.

Vera v. Richards, 861 F.Supp. 1304, 1316 (S.D.Tex. 1994), *aff'd*, 517 U.S. 952 (1996).

Manley's argument that districts drawn to meet the first *Gingles* precondition "majority" requirement violate the Fourteenth Amendment would doom all illustrative *Gingles* districts as racial gerrymanders from the very outset. Manley Motion at 18.

Moreover, the discussion of compactness in the cases that the State cites underscore the need for review by this Court. Plaintiffs' proposed districts use county building blocks as units of construction; the districts encompass whole communities and do not separate people on the basis of race; the districts follow the boundaries of whole precincts; the districts lie adjacent to each other in one region of the state; and the districts encompass communities that share similar socio-economic characteristics as well as strong historical and familial ties.[5]

The fact that Latino population becomes less concentrated away from the border, or that a proposed district includes some Anglo persons, does not defeat a section 2 claim on non-compactness grounds, as the State argues. And the State fails to explain how concerns about the segregative effects of "reach[ing] out to grab small and apparently isolated minority communities," *Vera*, 517 U.S. at 978, is relevant here when the newly-included county building blocks contain an average 34 percent Latino population and experienced significant Latino population

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[5] Manley's reliance on the testimony of Dr. Ronald Weber to suggest race-based considerations in Guadalupe and Comal Counties (among the 70 counties comprising plaintiffs' proposed districts) is unavailing. The *Vera* District Court considered and rejected the same testimony by Dr. Weber and upheld the district he challenged despite the fact that "[i]ts fingers do jut into the small cities of Seguin and New Braunfels [and] in so doing . . . the district excises the minority, largely Hispanic populations from those cities[.]" *Vera*, 861 F.Supp. at 1344; see also App. 11.

growth over the last decade.[6] Despite complaining *now* that counties added by plaintiffs to Latino majority districts contain "non-Latino population from unrelated communities" (State Motion at 4), the State at trial acknowledged the substantial Latino population of the exact same counties and encompassed them in a 39 percent Latino "influence" district.[7] App. 12.

Nothing in the District Court decision even hints that it considered *Shaw* and its progeny in relation to plaintiffs' proposed Latino majority districts.[8] Rather, in rejecting plaintiffs' districts as insufficiently compact, the court

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[6] Dr. Andres Tijerina offered unique testimony in the litigation regarding community characteristics in plaintiffs' proposed districts. Dr. Tijerina testified that the residents of the counties encompassed by proposed congressional Districts 15 and 32 have been connected for the past 150 years by family ties, shared settlement patterns, and trade and labor. App. 4. Plaintiffs also offered the only socioeconomic evidence on proposed districts 15 and 32, and this evidence demonstrated that the residents were united by similar characteristics. This evidence remained before the lower court with respect to plaintiffs' corresponding proposed Senate districts.

[7] The State's proposed Latino "influence" district was comprised in large part of the same counties that comprise the upper portion of plaintiffs' Latino-majority Congressional District 32: Wilson, Gonzales, Guadalupe, Caldwell and Bastrop.

[8] The State's attempt to piggyback a Fourteenth Amendment analysis onto the District Court's reference to "compact" leaves wholly unexplained the District Court's failure to identify the necessary elements, beyond non-compactness, required to conclude that any of plaintiffs' proposed districts should be subjected to strict scrutiny, and the District Court's further failure to apply strict scrutiny to determine whether plaintiffs' proposed districts would "subordinate traditional redistricting principles to race substantially more than is 'reasonably necessary' to avoid § 2 liability." *Bush v. Vera*, 517 U.S. at 962 and 979.

applied the wrong legal standard – a higher standard than it applied to itself.

III. PLAINTIFFS' PROPOSED SENATE DISTRICTS PARALLEL TEXAS STATE PRACTICES

The State does not claim that plaintiffs' proposed redistricting plans are unconstitutionally malapportioned. Plaintiffs' congressional redistricting plan contained a total deviation of zero percent. Their proposed Senate redistricting plan contained a total deviation of 9.46 percent, presumptively constitutional and lower than the 9.71 percent total deviation in the court-affirmed LRB plan.

Instead, the State again imputes to the District Court an analysis and conclusion that appear nowhere in its decision: that majority Latino districts containing less than the ideal district population fail to satisfy the first *Gingles* precondition and contravene this Court's holding in *Shaw v. Reno*.

The Court's decision in *Holder v. Hall*, upon which the State relies, was not a redistricting case, but dealt with the question of expanding the size of a governing authority in response to a section 2 challenge. *Holder v. Hall*, 512 U.S. 874 (1994). This Court ruled that section 2 requires a vote dilution plaintiff to propose a "reasonable alternative practice as a benchmark against which to measure the existing voting practice." *Id.* at 880. Here, plaintiffs do not seek to change the *method* by which representatives are elected and thus *Holder*'s discussion of "reasonable alternative practice" is inapposite. Nevertheless, if the ruling in *Holder* were to extend to this case, the redistricting practices of the State would be the reasonable benchmark against which to measure plaintiffs' proposed Latino majority districts.

Because the State has chosen to systematically underpopulate its Latino majority districts in South Texas,

plaintiffs' proffered "reasonable alternative practice" of seven Latino majority districts in South Texas with *smaller* population deviations than those enacted by the State more than satisfies the *Holder* rule. The LRB redistricting plan, upheld by the District Court, purposefully underpopulates all but one of its seven Latino majority districts: District 6 (-4.87), District 19 (-4.87), District 20 (+.62), District 21 (-4.92), District 26 (-4.88), District 27 (-4.72), District 29 (-4.73). By contrast, the Latino majority Senate districts plaintiffs presented in Plan 1206S are far less underpopulated: District 6 (+3.28), District 18 (-1.55), District 19 (-1.12), District 20 (-2.2), District 21 (-3.33), District 26 (-2.43), District 27 (-4.13), District 29 (-4.62). J.S. App. 46; App. 21.

Finally, the State argues that underpopulated Latino-majority Senate districts alone offer conclusive proof of race-based redistricting in violation of *Shaw v. Reno*. The argument is legally unfounded and could not have formed the basis of the District Court's decision. It is also inconceivable that lawyers who counseled the State as it systematically underpopulated Latino-majority Senate districts would now seriously argue that that very practice violates the Constitution.

IV. THE STATE'S MOTION FURTHER PROVES THE INADEQUACY OF THE DISTRICT COURT'S FINDINGS

The State concedes that the basis for the court's ruling must be clear, even in the absence of factual findings, and that "a full understanding of the issues [must] be reached" before this Court can consider the issues on appeal. Motion at 11-12. The District Court's decision simply does not provide that basis for appellate review.

The ultimate evidence of the District Court's failure to articulate its reasoning and provide factual analysis in support of its decision is the State's Motion itself. In its

Motion, the State attributes to the trial court analyses and conclusions never even intimated in its decision. Any ruling so vulnerable to revisionism and misappropriation demonstrates failure under Rule 52.

Respectfully submitted,

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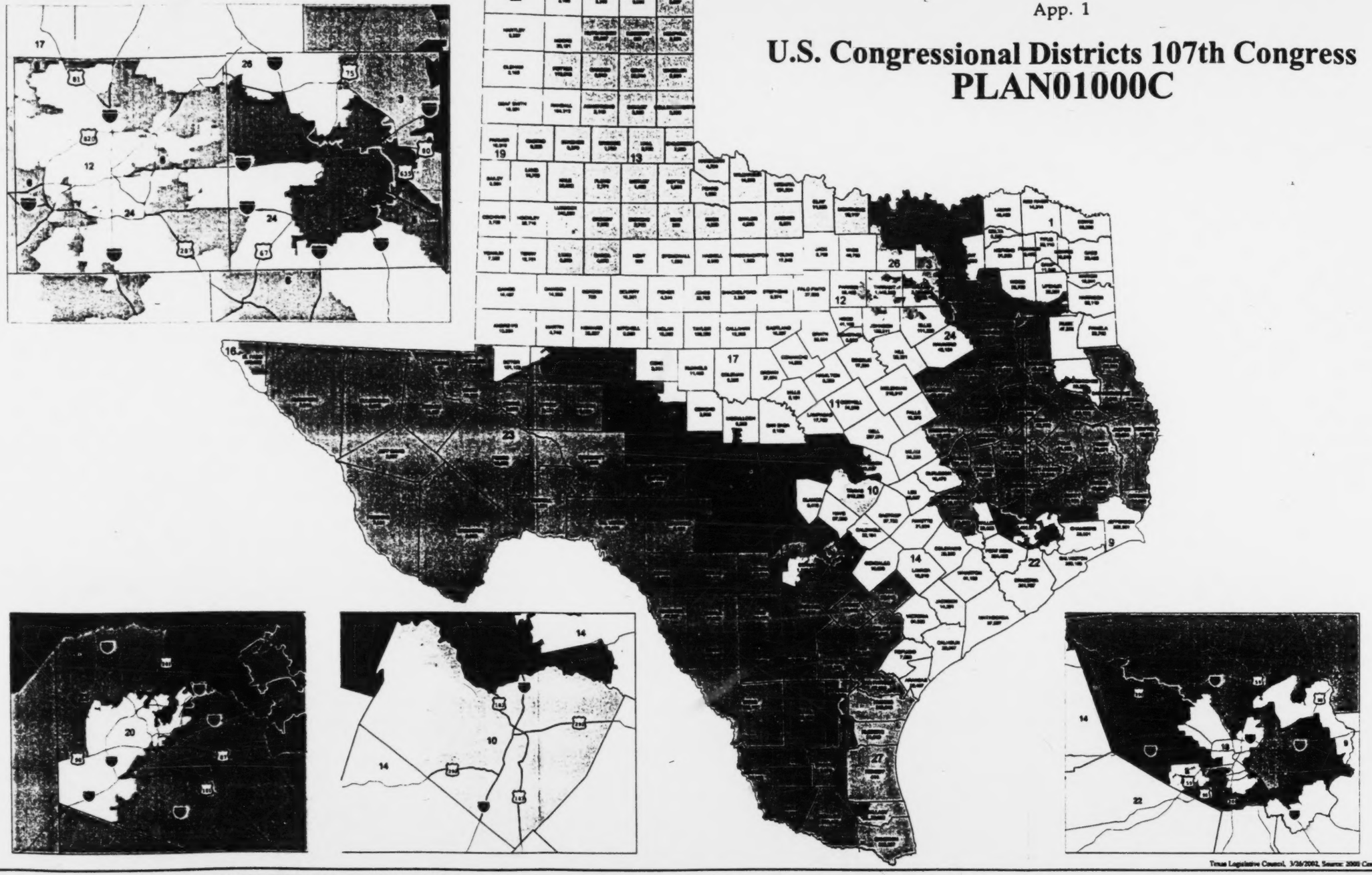
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App. 1

U.S. Congressional Districts 107th Congress
PLAN01000C

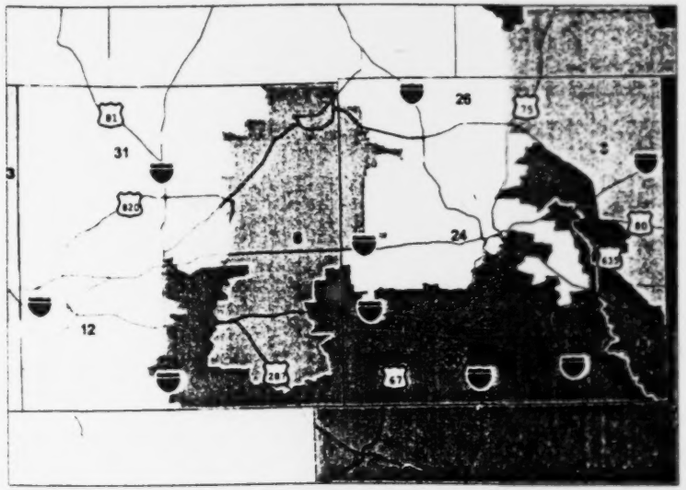


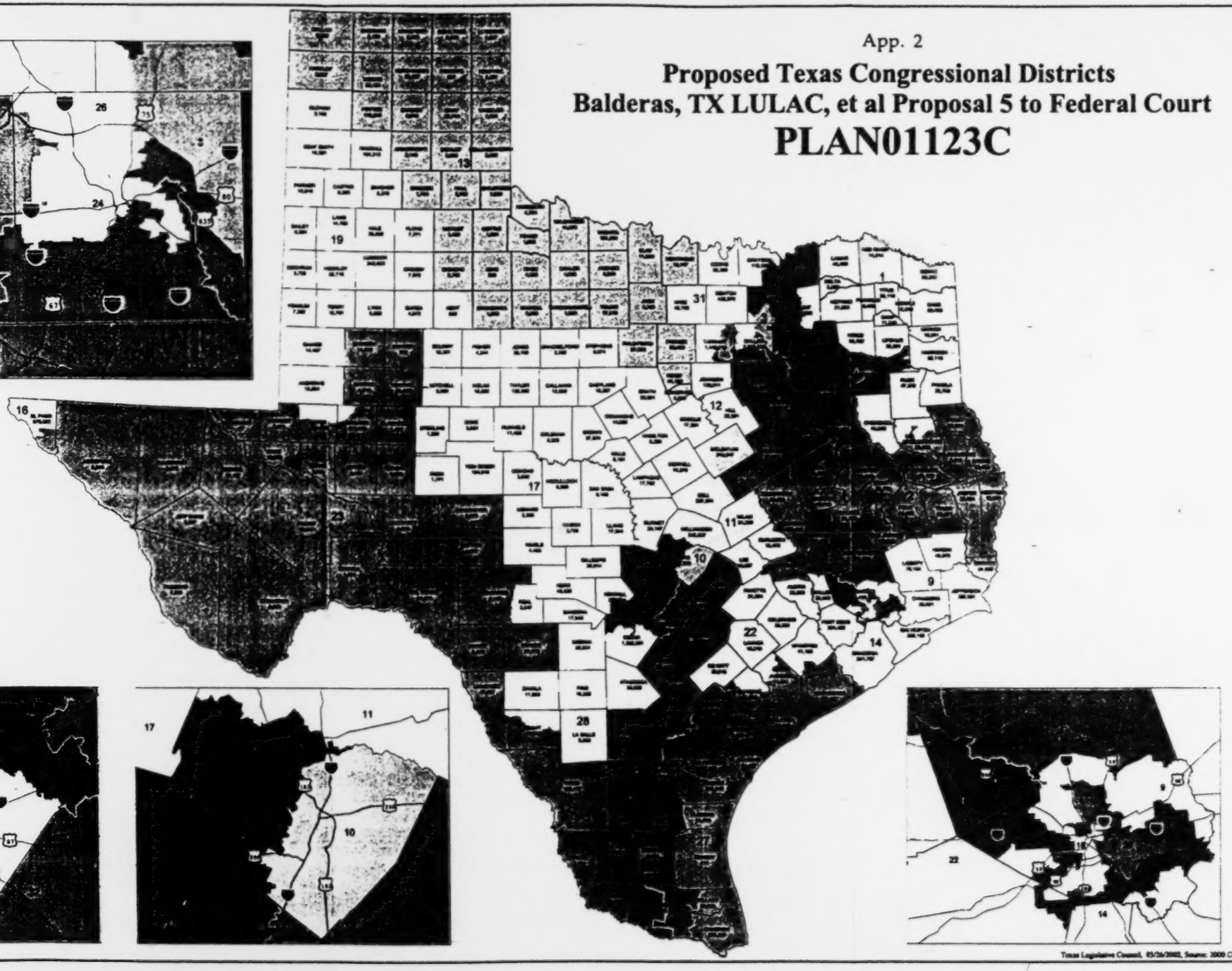
Texas Legislative Council, 3/26/2002, Source: 2000 Census

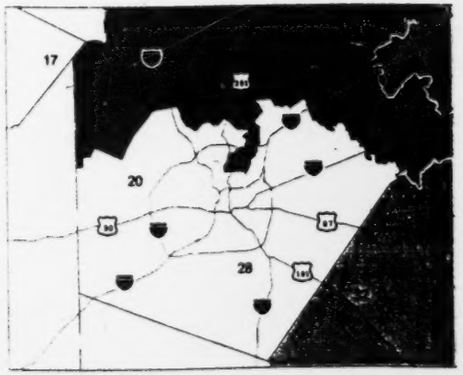
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App. 2

Proposed Texas Congressional Districts
Balderas, TX LULAC, et al Proposal 5 to Federal Court
PLAN01123C





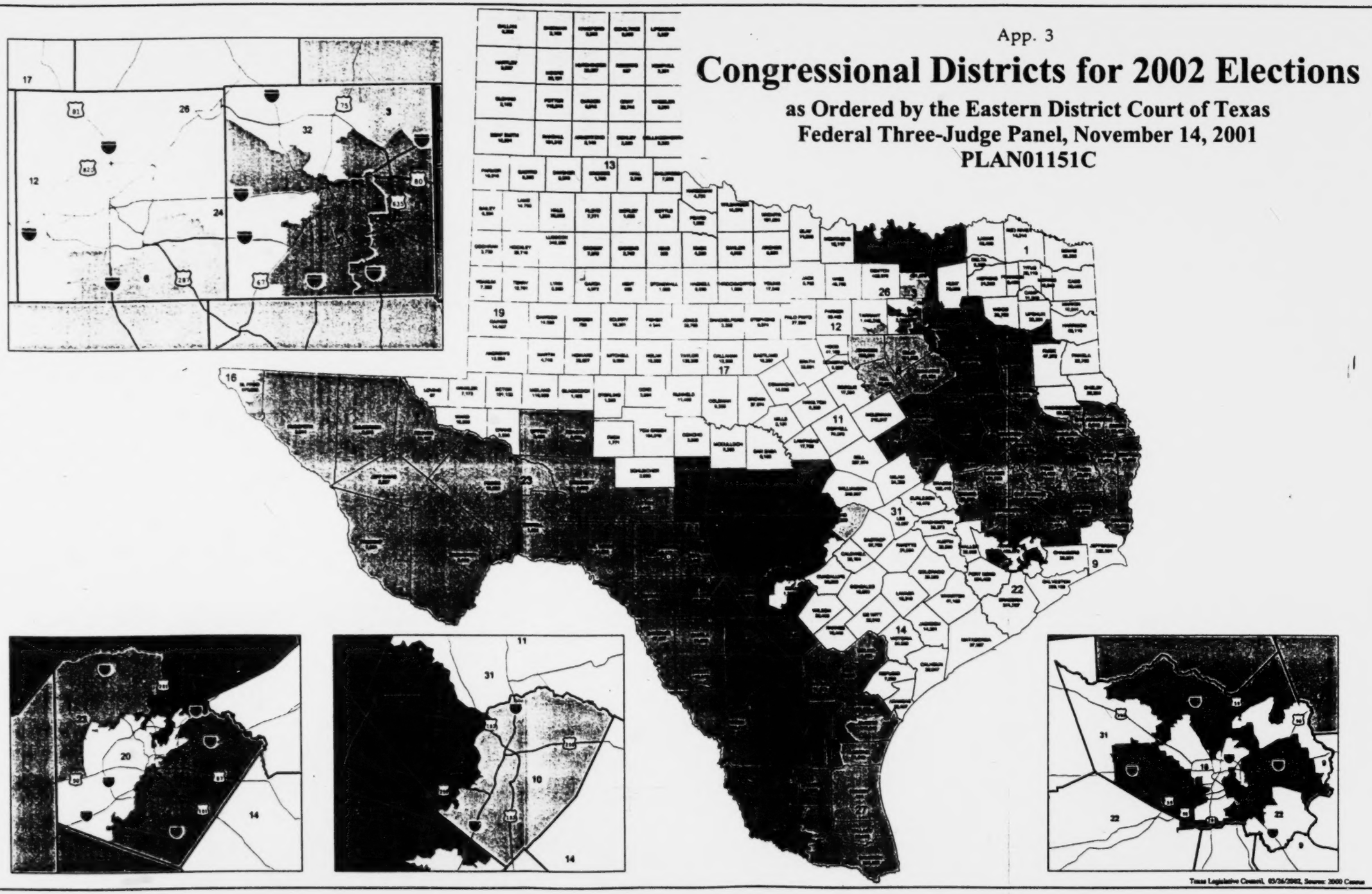


Texas Legislative Council, 05/26/2002, Source: 2000 Census

App. 3

Congressional Districts for 2002 Elections

as Ordered by the Eastern District Court of Texas
Federal Three-Judge Panel, November 14, 2001
PLAN01151C



Texas Legislative Council, 03/26/2002, Source: 2000 Census

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL	*	CIVIL ACTION NO.
VS.	*	6:01-CV-158
STATE OF TEXAS, ET AL	*	Austin, Texas

(This Filing Applies to all Actions)

TRANSCRIPT OF BENCH TRIAL
BEFORE
THE HONORABLE PATRICK E. HIGGINBOTHAM,
THE HONORABLE JOHN HANNAH, JR.
AND
THE HONORABLE T. JOHN WARD

* * *

October 22, 2001, Afternoon Session

[Testimony of Dr. Andres Tijerina]

* * *

[135] Q. Dr. Tijerina, I also asked you have you had a chance to consider in terms of some of the districting plans before the Court, the relationship between geographic areas in Texas in terms of their history, have you had a chance to review that, sir?

A. I've looked at that map, yes, sir.

Q. I would like you for a moment to tell me if you have in your opinion and based on your research, if you have found any relationships between the areas of Cameron, Hidalgo, Starr, Zapata County up through the Nueces River area, Aransas, San Patricio, Bee, Karnes, Live Oak Counties, and then indeed up through the area

along the Guadalupe and San Antonio rivers, Matagorda, [136] Calhoun, Victoria, up through Gonzales, Guadalupe Counties, have you had a chance to consider based upon the research and the writings as reflected in your report any of this history, sir?

A. Yes, sir.

Q. Will you give us a brief description of it, relationship between the groups of counties and the areas that I mentioned, the Rio Grande River up through the Nueces River area up through the San Antonio and Guadalupe River areas in terms of this study of Mexicans in Texas history that you have made?

A. In my research and publications and reading the literature in history in Texas history books, and our archives, I've found a strong and direct link that is well-documented between the community and along the Rio Grande, the lower Rio Grande, stretching up to along the coast all the way up to the San Antonio and Guadalupe River, and a couple – in two separate ways that I can cite in the 19th Century very strong relationship in the family patterns as well as in the trade patterns.

Q. Dr. Tijerina, let me ask you to come down here with us if you can, and I would like you to explain this history to the Court relating it to Plan 1099C and specifically with regard to proposed Districts 27, 15 and 32.

[137] If you will come over on this side, I will give you this, and don't be too professorial with us, though, but please explain it to us.

A. That's asking a lot.

JUDGE HIGGINBOTHAM: That's the way lawyers do. They get to be lawyer-like, but you can't be professor-like?

A. I can't do it.

Q. (By Mr. Kauffman) Let me ask you to explain first the historical relationship of families from along the Rio Grande river up through the Nueces River area and then up through the areas up to Victoria, sir?

A. The first families ever to lay claim on the land in this area, the original land grantees, were settled in five villages along the Rio Grande, from Laredo down to present day Brownsville by a wealthy Spanish count named Escondon in the 1750s.

Each of those villages that he established was a municipality and he gave land grants to all of the residents of those municipalities in a strip of land stretching northward from each one of them, so that the residents and the settlers of Reynosa were given their land grants headed northward toward the Corpus Christi area, all the way up to the Nueces.

The residents of Camargo were given their [138] land grants and you can follow their family geneology trees and the registration of their land grants straight from the Nueces River all the way down a strip to the Rio Grande.

JUDGE HIGGINBOTHAM: How do you fit the Conquistador period and Stephen Austin when he had the Mexican-Nationals and those men? How do you fit that pattern?

THE WITNESS: Very similar, sir. Stephen F. Austin received his land grants right here in Sealy, Texas

and San Felipe, Texas on the Colorado and the Brazos, actually the Brazos, and his people, his original 300 Anglo-American families that came in are all grouped right around him.

Now, the difference was that his were in pretty much a circle, where as these were in long strips.

THE WITNESS: When you say these were in long strips, you mean these families from along the Rio Grande River, for instance Starr County, were in strips up towards Gonzales, Caldwell and Bastrop.

JUDGE HIGGINBOTHAM: I thought he had a strip up through the Colorado and Brazos, northward, I didn't remember?

As a specific example, the village of Camargo on the Rio Grande would give land grants to its [139] settlers as they move northward, and I will follow one family for you, the Benevides family.

JUDGE HIGGINBOTHAM: That's a good name with my Court.

THE WITNESS: The Benevides family from Camargo, went and settled in Duval County, Benevides, Texas.

Straight south or rather northeast from there then there is a little town called Placedo, Texas, that is Placedo Benevides. That's the same family, direct linkage to the Duval County and straight on down to Camargo.

Those are all of the same families from the Rio Grande up to the Nueces River curving over toward Refugio, Victoria, Goliad area, and they were actually

relatives sometimes of the first and second degree of consanguinity of each other, cousins.

In villages on the Rio Grande, direct brothers or cousins of the people in Goliad and Victoria. They had their land grants, they had their ranches, and their families all along these lines. That's what I mean by the families.

* * *

[141] Q. (By Mr. Kauffman) Dr. Tijerina, if we can move on to the 20th Century, I think you talked about a pattern of migration, where was the migration from, and [142] to where did these people migrate after the Mexican Revolution, sir?

A. Well, to give a quick background those people who poured in and inundated not only the original Tejanos that we are talking about, but they inundated the Anglo-Americans all along this blackland prairie which is this curved strip, so that somewhere between 50 to 90 percent of the population was Mexican.

Now, those people are the ones that then were displaced by the New Deal Program in the 1930s. They had been sharecroppers all along this area picking the cotton in the 1880s to 1930 period, and they were – it was Mexican, a large population of Mexican Nationals.

Q. I think you mentioned, but what percentage of the population of Caldwell County is Mexican-American in the early 1990s?

A. In 1930 Caldwell County was about 90 percent Mexican National. Karnes County was 82 percent Mexican National in the period leading up to 1930.

JUDGE HANNAH: What was Bexar in 1910, 1900?

THE WITNESS: Bexar County in 1900 probably would have been just below 50 percent Mexican.

Now, Mexican National is what I was talking about. I was saying that Caldwell County was born in [143] Mexico, 1930 about 90 percent. So Bexar County born in Mexico probably 25 percent, born in the United States but Hispanic probably another 25 percent, 20 percent something like that.

Q. (By Mr. Kauffman) Dr. Tijerina, after 1933 you said because of a Federal Act there was basically a lot of the share croppers were removed from the land and became migrants, what about the migrant stream?

A. The migrant stream then took place between 1930 and 1960 started in the – along the Rio Grande, cotton areas, irrigated cotton in about June or July with about 100,000 cotton pickers, Mexican Nationals and Mexican-Americans.

By the end of July and August, those people had picked the cotton and moved up to the Corpus Christi, Taft, Robstown area and where they picked the cotton there and were joined by another maybe 50 to 100 thousand.

They then would move in trucks, buses, and cars and any other way up to the Goliad Victoria area where they picked the cotton around September, and they would move on up to the Brazos bottoms or Brazos River bottoms around the Bryan/College Station area by about

September or October so that the migrant stream followed perfectly along this coastal, following literally the [144] season, starting in June or July and then moving up to about August, September or October up in the Bryan/College Station area.

It's well-documented in newspapers and USDA accounts and State accounts.

Q. Dr. Tijerina, based on the analysis of 150 years of history, have you come to any conclusions about whether they are historical relationships between these areas along the lower Rio Grande River, through the Nueces River, and Nueces County up through Karnes and Wilson area up through the Victoria, Jackson County Gonzales and the Caldwell County area, have you come to and conclusions regarding that, sir?

A. Yes, that the original families are still linked. You can still find either Benevides or Tijerina or Cavasos family, Navarro, Gutierrez, the original families. You can find them in the Victoria area with relatives along the Rio Grande.

As far as that larger wave that came in after the turn of the century, those people also – my conclusion is those people also have strong family ties all along that migrant stream because as it went northward, they started dropping out and settling along the migrant stream. So, there is that nexus, the family ties also.

[145] Q. There is then historically a pattern of relationships between these counties along the Rio Grand River specifically, Cameron, Hidalgo, Starr and Zapata, up through the counties along the Nueces River, Nueces,

San Patricio, Bee, up through the San Antonio and Guadalupe River areas; is that correct, sir?

A. That is correct.

* * *

November 1, 2001, Afternoon Session

[Testimony of Dr. Ronald Weber]

* * *

[29] Q. Let me ask you this while we are finding it, Dr. Weber, you certainly have not studied and are not an expert regarding the Texas geography in the area between San Antonio and Austin; is that correct?

A. Between San Antonio and Austin? I guess I am more knowledgeable about Harris County and I'm more knowledgeable about the Metroplex than I would be about those areas.

[30] Q. But you are certainly not aware of any natural barriers in terms of Balcones Fault, highways, divisions in the area of San Antonio/Austin than would anyone else who drove around the State of Texas; is that correct?

A. I know where Interstate 35 is.

Q. Outside knowing where Interstate 34 is, you are not going to offer us any expert opinions on natural barriers, on the geographic barriers, highways, and their

barriers to the community between Austin and San Antonio; is that correct?

A. That is correct, sir, yes.

* * *

November 1, 2001, Afternoon Session

[Testimony of Dr. John Alford]

* * *

[115] EXAMINATION

BY MS. PERALES:

[116] Q. Based on your regression analysis that you did for this case, you can certainly conclude that at the level of the general election, you've got racially polarized voting?

A. Yes.

Q. You concluded that there is cohesive voting among Latino voters, correct?

A. Yes.

Q. In the Democratic primary that you analyzed for your report, Anglos vote overwhelmingly against the Hispanic candidate of choice, correct?

A. As sort of a general – yes, absolutely.

Q. I just wanted to follow up on one thing.

MS. PERALES: If I could ask Mr. Ware to zoom in on the map that you are supporting in the area around

Guadalupe and Caldwell Counties, which I believe is District 31 in the map.

Q. (By Ms. Perales) I believe you observed either in your testimony or in your testimony in the state court case that there is a considerable Latino population in this I-35 corridor area, is there not?

A. That is correct.

Q. And Plan 1044 gathers these voters into District 10, correct – I'm sorry, District 31?

A. Yeah, that population basically is not split [117] by a district. It sort of keeps that population together.

Q. However, the district is about 39 percent Hispanic voting age population, about 26 percent Spanish surnamed registration, correct?

A. I will take your word for it rather than waste time looking it up. It sounds about right.

Q. Thank you.

MS. PERALES: Mr. Ware, if you can put up Plan 1123 and focus on the same area.

Q. (By Ms. Perales) Isn't it true, Dr. Alford, that in Plans 1123 as well as 1121 and 1099 that this considerable Latino population is placed into a district with a majority of Spanish surnamed voter registration? That is one of our seven districts in South Texas.

A. You are excluding then the Travis County portion of the population?

Q. Yes, we don't cut into Travis County.

A. Yes. The portion outside of Travis County in your district is joined, too. I presume – does it go down to Hidalgo?

Q. Yes.

A. Yes, it's joined in Hidalgo.

Q. But it is encapsulated within a district that [118] is majority Spanish surnamed voter registration, right?

A. Yes.

Q. Can you outline for me, please, the boundary of District 31 in Plan – I just want to know if you can observe that this boundary here along the Balcones Fault along the cities of New Braunfels, San Marcos, Seguin, this area here, is substantially similar to the boundary that is followed in Plans 1123, 1099, 1121. Are you familiar with the way that we do that boundary compared to that one?

A. It's similar to the map we just looked at, again, with the Travis County exception, the 35 lines.

Q. You are familiar with those towns actually being arranged like pearls on a string along I-35 in that corridor?

A. A nice description.

Q. Thank you.

A. The Chamber of Commerce would appreciate that.

Q. I will apply to them. You concluded that in Plan 1044 that the creation of eight Hispanic voting age population districts falls between – in terms of proportionality 28.6 and 19.5 percent; is that correct?

A. That's from my report, yes.

Q. You would also agree with me that Plan 1123 and its sister plans which create nine Hispanic voting [119] age majority districts also falls between, in terms of proportionality, that 28.6 and 19.5 percent?

A. Again, that is correct. Yes.

Q. I just wanted to ask you, I'm not sure if you covered this with Mr. Taylor. In your opinion, compactness is a factor that Texas has not historically valued, right?

A. I don't think anyone can look at 1000C – if a principle is something that you apply, not just something that you use when it suits your interests, if you can find a principle of compactness across that map, it's a new one to me.

* * *

RED-M315
Data: 2000 Census
PLAN 01000C 02/09/01 15:43:47

COMPACTNESS ANALYSIS
CONGRESSIONAL - PLAN 01000C
Area Based Measures

Texas Legislative Council
07/18/01 10:15 AM
Page 1 of 1

DISTRICT	COMPACTNESS MEASURES	
	Perimeter to Area [1] (Rank)	Smallest Circle [2] (Rank)
Plan Average:	**8.2**	**3.3**
1	7.3 (17)	2.7 (12)
2	8.6 (21)	1.8 (1)
3	5.5 (10)	3.1 (18)
4	10.6 (25)	4.0 (23)
5	8.5 (20)	3.1 (19)
6	37.5 (30)	4.8 (27)
7	4.0 (4)	3.4 (21)
8	11.4 (28)	3.0 (17)
9	5.2 (8)	2.5 (7)
10	3.2 (2)	2.3 (2)
11	3.2 (3)	2.4 (4)
12	16.9 (29)	2.6 (11)
13	5.4 (9)	2.8 (13)
14	9.8 (24)	2.6 (10)
15	7.9 (18)	5.1 (30)
16	4.7 (6)	5.1 (29)
17	2.6 (1)	2.4 (3)
18	6.6 (16)	2.9 (14)
19	6.2 (14)	5.0 (28)
20	8.1 (19)	3.0 (16)
21	11.0 (27)	4.5 (26)
22	9.5 (22)	2.4 (6)
23	5.8 (13)	4.2 (24)
24	9.7 (23)	2.9 (15)
25	10.6 (26)	4.4 (25)
26	4.7 (7)	2.4 (5)
27	4.6 (5)	3.2 (20)
28	6.2 (15)	3.8 (22)
29	5.6 (11)	2.6 (8)
30	5.6 (12)	2.6 (9)

Compactness measures: Each measure is reported on a scale of 1 or greater, with lower numbers being more compact. On each scale, a score of 1 indicates perfect compactness. There is no upper limit to the score under any of the measures on this report.

Rank: Rank indicates the relative compactness of each district compared to the other districts in the plan, with 1 being the district with the most compact score for the specific compactness measure.

1 "Perimeter to Area" is the ratio of the area of a circle with the same perimeter as the district to the area of the district.
2 "Smallest Circle" is the ratio of the area of the smallest circle enclosing the district to the area of the district.

Request:8740

COMPACTNESS ANALYSIS
CONGRESSIONAL - PLAN 01123C
Area Based Measures

DISTRICT	COMPACTNESS MEASURES	
	Perimeter to Area [1] (Rank)	Smallest Circle [2] (Rank)
Plan Average:	**5.4**	**2.9**
1	6.5 (23)	2.0 (7)
2	6.5 (24)	2.3 (10)
3	3.5 (8)	3.4 (25)
4	8.1 (28)	2.9 (17)
5	4.7 (15)	2.5 (13)
6	4.3 (14)	2.2 (9)
7	3.4 (7)	3.4 (24)
8	5.9 (21)	3.0 (18)
9	3.8 (11)	1.8 (3)
10	2.3 (2)	1.8 (2)
11	4.8 (17)	2.5 (14)
12	3.6 (9)	3.1 (19)
13	3.8 (12)	3.8 (26)
14	4.7 (16)	3.1 (20)
15	8.3 (29)	4.7 (31)
16	2.1 (1)	2.0 (5)
17	2.5 (3)	1.6 (1)
18	10.4 (31)	3.9 (28)
19	2.8 (5)	2.4 (11)
20	2.6 (4)	2.5 (12)
21	6.0 (22)	2.6 (15)
22	5.4 (19)	3.1 (21)
23	5.6 (20)	3.8 (27)
24	7.3 (26)	2.8 (16)
25	13.0 (32)	3.9 (29)
26	3.7 (10)	2.0 (6)
27	4.8 (18)	3.2 (23)
28	3.3 (6)	1.9 (4)
29	7.7 (27)	3.1 (22)
30	10.0 (30)	4.2 (30)

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Request:14634

COMPACTNESS ANALYSIS
CONGRESSIONAL - PLAN 01123C
Area Based Measures

DISTRICT	COMPACTNESS MEASURES	
	Perimeter to Area [1] (Rank)	Smallest Circle [2] (Rank)
31	3.9 (13)	2.2 (8)
32	7.0 (25)	5.6 (32)

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COMPACTNESS ANALYSIS
CONGRESSIONAL - PLAN 01151C
Area Based Measures

DISTRICT	COMPACTNESS MEASURES	
	Perimeter to Area [1] (Rank)	Smallest Circle [2] (Rank)
Plan Average:	**5.1**	**2.8**
1	5.3 (19)	2.3 (13)
2	5.9 (21)	1.9 (7)
3	3.5 (10)	1.7 (1)
4	8.9 (31)	4.9 (31)
5	6.3 (24)	2.5 (16)
6	2.8 (7)	1.9 (6)
7	2.7 (3)	1.9 (5)
8	3.7 (12)	2.9 (21)
9	4.7 (17)	2.5 (15)
10	2.1 (2)	1.9 (4)
11	3.5 (11)	2.1 (11)
12	1.9 (1)	2.0 (8)
13	2.7 (4)	2.9 (20)
14	4.6 (16)	2.0 (10)
15	8.5 (29)	5.0 (32)
16	3.8 (13)	2.9 (22)
17	2.7 (5)	2.0 (9)
18	8.5 (30)	2.8 (19)
19	4.3 (15)	2.9 (23)
20	7.1 (26)	2.9 (24)
21	3.2 (9)	1.8 (3)
22	7.1 (27)	2.4 (14)
23	6.1 (22)	4.2 (29)
24	6.1 (23)	3.1 (26)
25	11.8 (32)	4.4 (30)
26	2.7 (6)	1.8 (2)
27	4.1 (14)	3.1 (25)
28	5.4 (20)	3.7 (27)
29	7.7 (28)	2.8 (18)
30	4.7 (18)	2.7 (17)

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COMPACTNESS ANALYSIS
CONGRESSIONAL - PLAN 01151C
Area Based Measures

DISTRICT	COMPACTNESS MEASURES	
	Perimeter to Area [1] (Rank)	Smallest Circle [2] (Rank)
31	6.7 (25)	3.8 (28)
32	3.0 (8)	2.3 (12)

Compactness measures: Each measure is reported on a scale of 1 or greater, with lower numbers being more compact. On each scale, a score of 1 indicates perfect compactness. There is no upper limit to the score under any of the measures on this report.

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RED-M200
Data: 2000 Census
PLAN 01188S 07/24/01 19:29:33

POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01188S

PLAN 01188S DIST		2000 CENSUS: TOTAL POPULATION: DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: YEAR	VOTER REG: TOTAL	VOTER REG: %SPAN	TURNOUT: TOTAL	TURNOUT: TO/VR	STATEWIDES**: %DEM	STATEWIDES**: %REP
1	Total	+ 3,040	(+0.45%)	675,679	501,017	118,077	46,846	164,054	10,608	74.2	17.5	6.9	24.3	1.6	2000	369,389	1.7	240,499	65.1%	35.6	64.4
	VAP			502,668	385,484	81,459	28,461	109,451	7,733	76.7	16.2	5.7	21.8	1.5	1998	362,137	1.4	154,881	42.8%	43.6	56.4
2	Total	+ 21,683	(+3.22%)	694,322	478,412	92,706	102,340	193,744	22,166	68.9	13.4	14.7	27.9	3.2	2000	335,339	5.8	210,628	62.8%	36.9	63.1
	VAP			490,177	354,413	59,541	61,434	120,362	15,402	72.3	12.1	12.5	24.6	3.1	1998	310,035	5.0	117,237	37.8%	39.8	60.2
3	Total	+ 28,645	(+4.26%)	701,284	531,252	91,116	69,369	159,575	10,457	75.8	13.0	9.9	22.8	1.5	2000	387,281	3.0	245,157	63.3%	35.9	64.1
	VAP			521,768	406,717	64,274	43,600	107,368	7,683	77.9	12.3	8.4	20.6	1.5	1998	367,905	2.7	148,428	40.3%	43.4	56.6
4	Total	-16,772	(-2.49%)	655,867	494,123	88,444	57,120	144,633	17,111	75.3	13.5	8.7	22.1	2.6	2000	364,365	4.3	243,952	67.0%	35.3	64.7
	VAP			471,848	363,114	60,669	36,724	96,850	11,884	77.0	12.9	7.8	20.5	2.5	1998	346,404	3.8	145,316	41.9%	41.7	58.3
5	Total	-7,425	(-1.10%)	665,214	458,549	82,081	104,862	185,566	21,099	68.9	12.3	15.8	27.9	3.2	2000	329,624	7.5	228,248	69.2%	34.2	65.8
	VAP			495,709	355,073	57,362	68,222	124,930	15,706	71.6	11.6	13.8	25.2	3.2	1998	297,185	6.9	140,793	47.4%	40.8	59.2
6	Total	-32,754	(-4.87%)	639,885	114,656	63,579	451,363	512,164	13,065	17.9	9.9	70.5	80.0	2.0	2000	217,271	46.3	110,459	50.8%	62.2	37.8
	VAP			429,481	95,202	42,027	283,928	324,450	9,829	22.2	9.8	66.1	75.5	2.3	1998	216,412	43.1	60,955	28.2%	62.0	38.0
7	Total	+ 22,471	(+3.34%)	695,110	486,961	47,730	113,173	159,455	48,694	70.1	6.9	16.3	22.9	7.0	2000	369,782	7.5	265,919	71.9%	23.9	76.1
	VAP			503,413	363,818	31,397	74,106	104,716	34,879	72.3	6.2	14.7	20.8	6.9	1998	329,907	6.6	140,281	42.5%	22.7	77.3
8	Total	+ 4,470	(+0.66%)	677,109	474,601	40,721	96,954	136,462	66,046	70.1	6.0	14.3	20.2	9.8	2000	338,761	5.1	242,322	71.5%	25.6	74.4
	VAP			499,748	360,346	27,739	64,598	91,738	47,664	72.1	5.6	12.9	18.4	9.5	1998	292,491	4.6	121,224	41.4%	24.0	76.0
9	Total	+ 10,730	(+1.60%)	683,369	379,083	84,504	166,628	248,971	55,315	55.5	12.4	24.4	36.4	8.1	2000	282,096	9.7	186,582	66.1%	34.5	65.5
	VAP			484,497	285,972	54,391	105,523	158,934	39,591	59.0	11.2	21.8	32.8	8.2	1998	257,354	8.5	89,674	34.8%	33.0	67.0
10	Total	+ 32,236	(+4.79%)	704,875	399,005	117,630	161,733	277,371	28,499	56.6	16.7	22.9	39.4	4.0	2000	341,943	9.4	241,019	70.5%	40.3	59.7
	VAP			504,808	306,396	78,342	100,682	178,034	20,378	60.7	15.5	19.9	35.3	4.0	1998	328,473	8.6	137,450	41.8%	41.9	58.1
11	Total	-2,264	(-0.34%)	670,375	438,871	64,375	134,957	197,768	33,736	65.5	9.6	20.1	29.5	5.0	2000	368,489	11.7	272,606	74.0%	35.8	64.2
	VAP			483,941	329,874	44,158	86,654	130,099	23,968	68.2	9.1	17.9	26.9	5.0	1998	341,892	11.0	130,234	38.1%	38.4	61.6

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.

Request:15128

POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01188S

PLAN 01188S DIST		2000 CENSUS: TOTAL POPULATION: DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	--VOTER REG-- TOTAL	%SPAN	---TURNOUT--- TOTAL	TO/VR	STATEWIDES** %DEM	%REP
12	Total	-5,286	(-0.79%)	667,353	509,070	39,950	86,478	125,379	32,904	76.3	6.0	13.0	18.8	4.9	2000	332,838	6.0	231,817	69.6%	30.4	69.6
	VAP			482,056	378,766	26,129	54,801	80,428	22,862	78.6	5.4	11.4	16.7	4.7	1998	306,359	5.4	117,959	38.5%	32.3	67.7
13	Total	-6,379	(-0.95%)	666,260	133,437	325,507	160,680	482,113	50,710	20.0	48.9	24.1	72.4	7.6	2000	320,209	8.2	202,458	63.2%	72.8	27.2
	VAP			483,895	115,962	226,786	103,901	328,346	39,587	24.0	46.9	21.5	67.9	8.2	1998	308,587	7.2	121,603	39.4%	73.4	26.6
14	Total	+27,217	(+4.05%)	699,856	380,654	75,121	203,673	275,844	43,358	54.4	10.7	29.1	39.4	6.2	2000	362,007	14.9	251,893	69.6%	47.7	52.3
	VAP			533,967	311,808	51,434	137,421	187,364	34,795	58.4	9.6	25.7	35.1	6.5	1998	315,486	14.5	146,549	46.5%	50.8	49.2
15	Total	-6,295	(-0.94%)	666,344	225,273	173,164	234,554	404,687	36,384	33.8	26.0	35.2	60.7	5.5	2000	277,011	14.8	169,174	61.1%	52.4	47.6
	VAP			468,078	179,993	114,117	148,584	261,209	26,876	38.5	24.4	31.7	55.8	5.7	1998	266,511	12.9	92,008	34.5%	51.3	48.7
16	Total	+3,125	(+0.46%)	675,764	360,899	85,529	186,648	270,317	44,548	53.4	12.7	27.6	40.0	6.6	2000	306,943	7.5	211,402	68.9%	36.1	63.9
	VAP			508,682	293,933	58,316	124,066	181,334	33,415	57.8	11.5	24.4	35.6	6.6	1998	293,275	6.5	127,837	43.6%	33.3	66.7
17	Total	+29,937	(+4.45%)	702,576	355,334	107,244	159,171	263,733	83,509	50.6	15.3	22.7	37.5	11.9	2000	334,623	10.2	236,070	70.5%	38.3	61.7
	VAP			503,583	268,652	71,691	104,483	174,683	60,248	53.3	14.2	20.7	34.7	12.0	1998	307,858	9.3	131,662	42.8%	39.9	60.1
18	Total	-11,597	(-1.72%)	661,042	386,786	73,311	182,102	253,452	20,804	58.5	11.1	27.5	38.3	3.1	2000	352,490	14.8	225,350	63.9%	35.4	64.6
	VAP			473,776	294,144	50,724	115,680	165,569	14,063	62.1	10.7	24.4	34.9	3.0	1998	326,470	13.8	146,145	44.8%	42.2	57.8
19	Total	-32,776	(-4.87%)	639,863	162,382	42,132	428,554	468,168	9,313	25.4	6.6	67.0	73.2	1.5	2000	312,440	55.2	159,220	51.0%	52.3	47.7
	VAP			438,510	128,891	29,868	274,140	302,848	6,771	29.4	6.8	62.5	69.1	1.5	1998	294,629	53.7	97,250	33.0%	56.3	43.7
20	Total	+4,140	(+0.62%)	676,779	163,775	17,231	486,661	502,002	11,002	24.2	2.5	71.9	74.2	1.6	2000	313,197	59.5	169,857	54.2%	52.2	47.8
	VAP			462,963	129,634	11,424	314,844	325,415	7,914	28.0	2.5	68.0	70.3	1.7	1998	299,983	58.1	99,551	33.2%	55.7	44.3
21	Total	-33,114	(-4.92%)	639,525	173,193	30,596	427,861	456,101	10,231	27.1	4.8	66.9	71.3	1.6	2000	329,403	57.9	167,288	50.8%	49.6	50.4
	VAP			435,429	133,030	21,190	275,036	295,052	7,347	30.6	4.9	63.2	67.8	1.7	1998	285,129	59.2	100,950	35.4%	55.5	44.5
22	Total	+15,161	(+2.25%)	687,800	490,752	80,169	103,948	182,394	14,654	71.4	11.7	15.1	26.5	2.1	2000	340,586	7.0	217,836	64.0%	35.3	64.7
	VAP			499,517	371,729	54,001	63,973	117,212	10,576	74.4	10.8	12.8	23.5	2.1	1998	316,045	6.4	129,240	40.9%	41.2	58.8

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.

Request:15128

POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01188S

PLAN 01188S DIST		2000 CENSUS: TOTAL POPULATION: DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	--VOTER REG-- TOTAL	%SPAN	---TURNOUT--- TOTAL	TO/VR	STATEWIDES** %DEM	%REP
23	Total	+ 17,988	(+2.67%)	690,627	131,674	279,924	268,704	545,557	13,396	19.1	40.5	38.9	79.0	1.9	2000	291,197	14.8	165,274	56.8%	72.2	27.8
	VAP			478,202	111,896	190,798	167,341	356,495	9,811	23.4	39.9	35.0	74.5	2.1	1998	273,554	13.1	92,737	33.9%	71.0	29.0
24	Total	-2,797	(-0.42%)	669,842	477,426	66,958	108,624	172,656	19,760	71.3	10.0	16.2	25.8	2.9	2000	351,152	8.9	228,770	65.1%	29.4	70.6
	VAP			494,185	371,855	42,503	66,819	107,964	14,366	75.2	8.6	13.5	21.8	2.9	1998	327,210	8.4	148,856	45.5%	36.1	63.9
25	Total	+ 26,764	(+3.98%)	699,403	466,576	29,936	183,062	211,074	21,753	66.7	4.3	26.2	30.2	3.1	2000	416,342	17.5	287,681	69.1%	31.4	68.6
	VAP			520,255	362,222	20,028	122,882	142,037	15,996	69.6	3.8	23.6	27.3	3.1	1998	370,460	16.7	164,649	44.4%	33.2	66.8
26	Total	-32,801	(-4.88%)	639,838	169,015	34,781	421,700	453,231	17,592	26.4	5.4	65.9	70.8	2.7	2000	324,895	56.6	171,936	52.9%	53.5	46.5
	VAP			458,721	136,408	23,367	287,155	309,049	13,264	29.7	5.1	62.6	67.4	2.9	1998	304,561	55.7	93,185	30.6%	54.9	45.1
27	Total	-31,736	(-4.72%)	640,903	83,570	4,632	549,373	552,266	5,067	13.0	0.7	85.7	86.2	0.8	2000	256,309	74.5	119,942	46.8%	57.8	42.2
	VAP			421,364	70,269	2,948	345,317	347,359	3,736	16.7	0.7	82.0	82.4	0.9	1998	242,824	73.8	65,053	26.8%	58.0	42.0
28	Total	+ 1,251	(+0.19%)	673,890	417,316	42,860	203,915	245,041	11,533	61.9	6.4	30.3	36.4	1.7	2000	356,726	20.6	218,774	61.3%	29.5	70.5
	VAP			496,874	330,090	29,631	129,178	158,170	8,614	66.4	6.0	26.0	31.8	1.7	1998	347,721	19.4	155,723	44.8%	38.0	62.0
29	Total	-31,849	(-4.73%)	640,790	114,087	23,302	494,799	514,832	11,871	17.8	3.6	77.2	80.3	1.9	2000	291,930	64.1	143,258	49.1%	56.6	43.4
	VAP			438,681	90,344	15,107	325,852	339,519	8,818	20.6	3.4	74.3	77.4	2.0	1998	267,238	62.8	90,457	33.8%	59.9	40.1
30	Total	+ 22,400	(+3.33%)	695,039	566,913	36,864	72,973	108,894	19,232	81.6	5.3	10.5	15.7	2.8	2000	365,121	4.2	238,886	65.4%	33.4	66.6
	VAP			514,077	429,160	25,831	45,381	70,800	14,117	83.5	5.0	8.8	13.8	2.7	1998	345,382	3.9	147,578	42.7%	40.3	59.7
31	Total	-17,402	(-2.59%)	655,237	408,651	32,883	200,841	232,128	14,458	62.4	5.0	30.7	35.4	2.2	2000	327,481	17.0	205,015	62.6%	24.5	75.5
	VAP			464,188	310,971	21,386	122,115	142,872	10,345	67.0	4.6	26.3	30.8	2.2	1998	319,705	15.5	135,879	42.5%	29.8	70.2

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.